



Notification Waiver Determination

Blackstone – DarkVision Technologies

Acquisition	Dynamo Bidco, Inc., an affiliate of various funds advised and/or managed by affiliates of Blackstone Inc. (Blackstone), applied for a notification waiver in respect of its proposed acquisition of 100% of the equity interests in DarkVision Technologies Inc. (DarkVision), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	17 August 2026

Parties to the Acquisition	The acquirer, Blackstone, is a US-based corporation incorporated under the laws of Delaware, United States. Blackstone operates as an investment management firm, not as a conglomerate or holding company. Accordingly, each company in its investment portfolio is independently managed and financed, and each has different investors (although the investors in different investment funds may overlap). Each Blackstone portfolio company has its own board of directors, which generally also include Blackstone representatives. The target, DarkVision, is a Canadian company that develops advanced ultrasound imaging technology to capture high resolution imaging data of industrial assets, including oil and gas wells and pipelines. In Australia, DarkVision's activities are limited to the supply of downhole imaging services to companies in the oil and gas industry, via its core product, Hades. Hades is a downhole inspection tool and ultrasound imaging system for oil and gas wells.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. There is no horizontal overlap or vertical relationship between Blackstone or its controlled portfolio companies and DarkVision in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.

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	Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**